

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.
Complainant,

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC
Respondent.

**DECLARATION OF STEPHEN M. UTHOFF IN SUPPORT OF THREE RIVERS
TRUCKING, INC.'S MOTION TO QUASH**

I Stephen M. Uthoff, declare: that I am an attorney at law duly qualified to practice before the Commission and am attorney of record for Three Rivers Trucking, Inc. ("TRT"). I make this declaration in support of TRT's motion to quash, modify or in the alternative for a protective order. I have personal knowledge as to the matters stated herein, and if called upon as a witness I could and would competently testify thereto.

1. A true and correct copy of the Subpoena at issue in TRT's motion has been filed as Exhibit A thereto.

2. On behalf of TRT, I accepted electronic service of the Subpoena effective October 17, 2022, reserving all rights, objections and defenses.

2. Attached as Exhibit B to the motion is a true and correct copy of the FMCSA information for motor carrier “3 Rivers Trucking” which I downloaded from the SAFER website on October 27, 2022.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct to the best of my knowledge.

Dated: October 27, 2022

Stephen M
Uthoff

Stephen M. Uthoff

Digitally signed by Stephen M
Uthoff
Date: 2022.10.27 10:17:27
-07'00'

CERTIFICATE OF SERVICE

I hereby certify that on October 27, 2022, the foregoing Declaration of Stephen M. Uthoff has been served upon all interested persons and parties by electronic means pursuant to the below list.

Executed in Los Angeles County California, October 27, 2022.

Stephen M
Uthoff

Digitally signed by Stephen M
Uthoff
Date: 2022.10.27 10:17:51
-07'00'

Stephen M. Uthoff

Counsel for Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC

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Presiding Administrative Law Judge

Erin M. Wirth, Chief Administrative Law Judge

Office of Administrative Law Judges

Federal Maritime Commission

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